OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Cr Matthew Norris, the East Street call-in and the Deputy Mayor ballot

Sent 28 October 2026 · To Shoalhaven City Council · Response requested by 4 November 2026

OPEN LETTER
To: Councillor Matthew Norris, Assistant Deputy Mayor, Shoalhaven City Council
From: Stephen Prothero, Eye on Shoalhaven Council
Date: Wednesday 28 October 2026
Subject: DA2026/1972 (10 to 18 East Street, Nowra): the call-in, your declaration, and the Deputy Mayor ballot

STATUS OF THIS LETTER
This is a public open letter to a councillor. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to an elected official in the same way a journalist puts questions to any public figure. You may answer all, some or none of the questions, and may do so in whatever form and at whatever time you choose. If you intend to comment on any question, a short reply to this email saying so is all that is needed.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Dear Cr Norris,

I am writing about two matters: your call-in of DA2026/1972, and your vote in the Deputy Mayor ballot. I have set out what the public record shows, and then asked questions. Where I do not know something, I say so.

1. The call-in
On 24 September 2026 Council resolved, on your motion (CL26.231), to "call in DA2026/1972 - 10, 12, 14, 16, 18 East Street NOWRA on account of public interest and size, scale and bulk of the proposed development" (MIN26.368). As I understand it, the DA

proposes a 7,538 m² commercial centre including a 24-hour service station and four drive-through food pads.

In moving it, you called it “a pretty significant development” that had left “a significant amount of people in the community… confused, puzzled, amused.” Asked by the Mayor for a specific reason, you said “the public interest.” Staff told the meeting the DA had been lodged in August, was under assessment and had not been publicly exhibited. The motion carried 8–4.

On 27 October Council rescinded the call-in 7–6 (CL26.293). The only public submission on the DA tracker, as Cr Tribe and the Mayor confirmed in the chamber, is from your brother. Cr Tribe, who had voted for the call-in, said she had checked the DA tracker and “it doesn’t appear that that public interest concern has eventuated.” You opposed the rescission, referring to a Daily Telegraph article posted to Facebook with “about 400 comments”, and adding “I always say Facebook is not a metric.”

Question 1. On what date did you first learn that a relative of yours had lodged a submission on DA2026/1972, and how did you learn of it?
Question 2. On what date was that submission lodged? Staff said on 24 September that the DA had not been publicly exhibited.
Question 3. Before you gave notice of the motion, were you aware that any member of your family had an interest in, or a view on, the DA?
Question 4. What specific evidence of public interest did you hold on 24 September 2026 when you moved the call-in? Please identify each item and its date.
Question 5. Please identify the Daily Telegraph article and Facebook post you referred to on 27 October. When was it published, was it published before or after 24 September, and what was your basis for the figure of about 400 comments?
Question 6. Does Council have, or do you support, a written threshold for calling in a development application? If not, what test did you apply?
2. Your declaration and the rescission vote
At the start of the 27 October meeting you said that after the September meeting you “were made aware that a relative of mine had lodged a public submission”, that you were “unaware of this submission at the time of the meeting”, and that a declaration had been recorded in the minutes. The recording of the 24 September sitting shows no declaration on the item. On the rescission item you declared a “less significant non-pecuniary interest”, said you considered it less significant, and remained in the room and voted. Cr Kemp asked whether the interest was significant and whether you should stay. The Mayor said it was for you to judge, and not for any councillor to question.

Question 7. Who prompted or advised you to make the post-meeting declaration on the 24 September item, and when?
Question 8. Before 27 October did you seek advice from Council’s governance staff, the

CEO or anyone else on whether to remain in the room and vote on the rescission? If so, what was the advice?
Question 9. What were your reasons for treating the interest as less than significant and for remaining in the room and voting?
Question 10. Having moved the original call-in, do you accept that a reasonable member of the public might ask whether the one submission on the file affected your judgement? If not, why not?
3. The Deputy Mayor ballot
On the public record, Cr Clancy was elected Deputy Mayor in September 2026 (MIN26.301) and you were elected Assistant Deputy Mayor. My understanding is that in the ballot for Deputy Mayor you voted for Cr Clancy rather than Cr Tribe. Council's notice says the two roles "support the Mayor in carrying out civic and ceremonial duties" and "act in the Mayor's absence when required". Mayoral Minute MM26.12 names you on the CEO Performance Review Panel as Assistant Deputy Mayor.

Question 11. Is it correct that you voted for Cr Clancy rather than Cr Tribe for Deputy Mayor? If so, what were your reasons?
Question 12. How was the Assistant Deputy Mayor position filled? Who nominated you, who else was nominated, and how did each councillor vote?
Question 13. What do you understand the role of Assistant Deputy Mayor to be, what powers or duties does it carry, and under what authority is it created?
Question 14. Before either ballot, did you discuss with any councillor who would hold either position? I do not suggest that any arrangement existed. I ask so that the record is complete.
I ask for a response by 5.00pm on Wednesday 4 November 2026. If any question cannot be answered, please say which and why, so that I can report the reason accurately.

I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council Facebook group. If no reply is received by that time, I will report that plainly.

No adverse finding has been made against any councillor, and none is implied. Every factual statement in this letter is drawn from Council's published papers, recordings and notices, or is identified as my understanding. I will correct any error promptly and with the same prominence.

Yours sincerely,
Stephen Prothero

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Documents relied on: Shoalhaven City Council, Ordinary Meeting agenda 27 October 2026, items CL26.293 and MM26.12; webcast and transcript of the 27 October 2026 meeting; MIN26.368 (24 September 2026) as quoted in CL26.293; Council's news notice on the election of the Deputy Mayor and Assistant Deputy Mayor (September 2026); Eye on Shoalhaven Council, article on the East Street call-in (28 October 2026).
